

1 ENGROSSED SENATE
2 BILL NO. 1832

By: Stanley of the Senate

3 and

4 Smith of the House

5
6 An Act relating to income tax; amending 68 O.S. 2021,
7 Section 2368.28, which relates to income tax refund
8 donation to the Indigent Veteran Burial Program;
9 reauthorizing donation for certain tax years;
10 amending 72 O.S. 2021, Section 63.19, which relates
11 to the Oklahoma Department of Veterans Affairs
Equipment and Capital Improvement Program;
reauthorizing donation for certain tax years;
updating statutory reference; updating statutory
language; providing an effective date; and declaring
an emergency.

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15 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

16 SECTION 1. AMENDATORY 68 O.S. 2021, Section 2368.28, is
17 amended to read as follows:

18 Section 2368.28. A. Each state individual income tax return
19 form for tax years ~~which begin after December 31, 2016~~ 2017 through
20 2020 and tax year 2026 and subsequent tax years, and each state
21 corporate tax return form for tax years ~~beginning after December 31,~~
22 ~~2016~~ 2017 through 2020 and tax year 2026 and subsequent tax years,
23 shall contain a provision to allow a donation from a tax refund for
24

1 the benefit of the Oklahoma Department of Veterans Affairs Indigent
2 Veteran Burial Program.

3 B. All monies generated pursuant to subsection A of this
4 section shall be paid to the State Treasurer by the Oklahoma Tax
5 Commission and placed to the credit of the Indigent Veteran Burial
6 Revolving Fund created in subsection C of this section.

7 C. There is hereby created in the State Treasury a revolving
8 fund to be designated the "Indigent Veteran Burial Revolving Fund"
9 and administered by the Oklahoma Department of Veterans Affairs.
10 The fund shall be a continuing fund, not subject to fiscal year
11 limitations, and shall consist of all the monies received pursuant
12 to the provisions of subsection A of this section and any donations
13 received from any individuals or organizations. All monies accruing
14 to the credit of the fund are appropriated and may be budgeted and
15 expended by the Oklahoma Department of Veterans Affairs to provide
16 reimbursement to a cemetery or funeral home for costs incurred
17 burying an indigent veteran; provided, the maximum reimbursement
18 shall not exceed Five Hundred Dollars (\$500.00) per veteran and
19 total reimbursements made in calendar year 2017 shall be limited to
20 Twenty Thousand Dollars (\$20,000.00). Expenditures from the fund
21 shall be made upon warrants issued by the State Treasurer against
22 claims filed as prescribed by law with the Director of the Office of
23 Management and Enterprise Services for approval and payment.

1 D. If a taxpayer makes a donation pursuant to subsection A of
2 this section in error, such taxpayer may file a claim for refund at
3 any time within three (3) years from the due date of the tax return.
4 Such claims shall be filed pursuant to the provisions of Section
5 2373 of ~~Title 68 of the Oklahoma Statutes~~ this title. Prior to the
6 apportionment set forth in this section, an amount equal to the
7 total amount of refunds made pursuant to this subsection during any
8 one (1) year shall be deducted from the total donations received
9 pursuant to this section during the following year and such amount
10 deducted shall be paid to the State Treasurer and placed to the
11 credit of the Income Tax Withholding Refund Account.

12 E. Pursuant to Section 2368.18 of this title, the income tax
13 checkoff contained in this section is hereby reauthorized upon the
14 effective date of this act.

15 SECTION 2. AMENDATORY 72 O.S. 2021, Section 63.19, is
16 amended to read as follows:

17 Section 63.19. A. The Oklahoma Tax Commission shall include on
18 each state individual income tax return form for tax years ~~beginning~~
19 ~~after December 31, 2001~~ 1994 through 2008, and each state corporate
20 tax return form for tax years ~~beginning after December 31, 2001~~ 1994
21 through 2008 and tax year 2026 and subsequent tax years, an
22 opportunity for the taxpayer to donate from a tax refund for the
23 benefit of the Oklahoma Department of Veterans Affairs Equipment and
24 Capital Improvement Program.

1 B. The monies generated from donations made pursuant to
2 subsection A of this section shall be used by the Oklahoma
3 Department of Veterans Affairs to purchase equipment and develop
4 capital improvement projects and to acquire properties for expanding
5 or improving existing projects, or for future projects to include
6 site acquisition, architectural plan development and construction.

7 C. Except as otherwise provided for in this section, all monies
8 generated pursuant to subsection A of this section shall be paid to
9 the State Treasurer and placed to the credit of the Capital
10 Improvement Program Revolving Fund.

11 D. There is hereby created in the State Treasury a revolving
12 fund for the Oklahoma Department of Veterans Affairs to be
13 designated the "Capital Improvement Program Revolving Fund". The
14 fund shall be a continuing fund not subject to fiscal year
15 limitations and shall consist of all monies received pursuant to the
16 provisions of this section. The Oklahoma Department of Veterans
17 Affairs is hereby authorized to invest all or part of the monies of
18 the fund in securities and any interest or dividends accruing from
19 the investments and any monies generated at the time of redemption
20 of the investments shall be deposited in the Capital Improvement
21 Program Revolving Fund. All monies accruing to the credit of the
22 fund are hereby appropriated and may be budgeted and expended by the
23 Oklahoma Department of Veterans Affairs for the purposes stated in
24 subsection B of this section. Any monies withdrawn from the fund by

1 the Oklahoma Department of Veterans Affairs for investment pursuant
2 to this section shall be deemed to be for the purpose of equipment
3 purchases or enhancing the veterans capital improvement programs of
4 ~~the State of Oklahoma~~ this state. Expenditures from the fund shall
5 be made upon warrants issued by the State Treasurer against claims
6 filed as prescribed by law with the Director of the Office of
7 Management and Enterprise Services for approval and payment.

8 E. If a taxpayer makes a donation pursuant to subsection A of
9 this section in error, the taxpayer may file a claim for refund at
10 any time within three (3) years from the due date of the tax return.
11 Such claims shall be filed pursuant to the provisions of Section
12 2373 of Title 68 of the Oklahoma Statutes and, if allowed, shall be
13 paid pursuant to the provisions of ~~said~~ such section. Prior to the
14 apportionment set forth in subsection C of this section, an amount
15 equal to the total amount of refunds made pursuant to this
16 subsection during any one (1) year shall be deducted during the
17 following year, and the amount deducted shall be paid to the State
18 Treasurer and placed to the credit of the Income Tax Withholding
19 Refund Account.

20 F. Pursuant to Section 2368.18 of this title, the income tax
21 checkoff contained in this section is hereby reauthorized upon the
22 effective date of this act.

23 SECTION 3. This act shall become effective July 1, 2026.
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SECTION 4. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 9th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives